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21-CIV-00981

JOSHUA SERRANO VS. PAUL LELAND MICHAELSON, ET AL

JOSHUA SERRANO
PAUL LELAND MICHAELSON

ROBERT G. CUMMINGS
M. GERALD SCHWARTZBACH

PLAINTIFF'S MOTION TO PERMIT DISCOVERY OF DEFENDANT'S FINANCIAL CONDITION PURSUANT TO CALIFORNIA CIVIL CODE § 3295(c)

TENTATIVE RULING:

Plaintiff Joshua Serrano's Notice of Motion and Motion to Permit Discovery of Defendant's Financial Condition Pursuant to California Civil Code §3295(c) filed on November 3, 2025 (the "Motion") stated that the above entitled matter was set in Dept. 11. However, effective December 1, 2025, by order of the Presiding Judge pursuant to San Mateo County Superior Court Local Rule 3.200(a), this matter was reassigned for all purposes, including the instant hearing, to the Honorable Mark A. McCannon, Department 2, located at 1050 Mission Road, South San Francisco, CA 94080, Courtroom K. (See Cal. Rules of Court, Rule 3.1110 [the Notice "must specify" the location of the hearing].)

The Motion is GRANTED without prejudice.

The Complaint alleges that after first having lied to the police, Defendant admitted to having written and delivered to the church of which Plaintiff is the Pastor four notes threatening Plaintiff's assassination and gun violence against the congregation, causing severe emotional distress to Plaintiff, his family, and the congregation.

Through his Motion to Permit Discovery of Defendant's Financial Condition Pursuant to California Civil Code §3295(c) filed on November 3, 2025 (the "Motion"), Plaintiff seeks an Order permitting discovery into Defendant's financial condition. (Civ. Code, § 3295, subd. (c).)

The governing statute provides that:

Upon motion by the plaintiff supported by appropriate affidavits and after a hearing, if the court deems a hearing to be necessary, the court may at any time enter an order permitting the discovery otherwise prohibited by this subdivision if the court finds, on the basis of the supporting and opposing affidavits presented, that the plaintiff has established that there is a substantial probability that the plaintiff will prevail on the claim pursuant to Section 3294. (Civ. Code, § 3295, subd. (c).)

Plaintiff declares that Defendant issued terrorist threats including that Sunday church attendees should have their wills in order because he was going to bring a gun with 30 rounds of ammunition to the church, kill Plaintiff first, and then turn his weapon on the congregation in a mass shooting. (Serrano Decl., ¶ 2, & Exhs. 1-3.) Plaintiff argues that Defendant's conduct was despicable and willful, demonstrating a conscious disregard for the safety of others. Moreover, Defendant's malicious intent was clearly expressed repeatedly in writing and in testimony under oath reflecting his intent to terrify Plaintiff and the congregation (id., ¶ 5).

Defendant asserts that Court found him suitable for a mental health diversion, which terminated successfully so that criminal charges against him were dropped, because his expert reported that but for a traumatic brain injury, Defendant would not have committed the acts that resulted in criminal proceedings against him and are at issue here. However, the mental health diversion resulted in no opinions that are binding on this Court, and in particular, in no determinations as to Defendant's civil intent.

No authority has been presented one way or the other as to the effect of a determination that a criminal defendant is suitable for a mental health diversion on the potential finding of malice that would support an award of punitive damages under Civil Code section 3294. However, it is clear that neither of Defendant's criminal proceedings resulted in an adjudication that is binding on this Court's decision in that regard.

In the instant civil action, Defendant's civil liability, including his mens rea pursuant to Civil Code section 3294 and whether he was capable of knowing that his acts were wrongful when he committed them (Civ. Code, § 41), are for the fact-finder to determine. In ruling on the instant Motion, this Court simply must determine whether there is a substantial probability that Plaintiff will prevail in his claim for punitive damages. The Court of Appeal explains that, "In this context, we interpret the words 'substantial probability' to mean 'very likely' or 'a strong likelihood' just as their plain meaning suggests." (Jabro v. Superior Court (2002) 95 Cal.App.4th 754, 758.)

In turn, to prevail on the claim for punitive damages pursuant to section 3294, a plaintiff must prove "by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice" (Civ. Code, § 3294, subd. (a)), where "'Malice' means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others" (id., § 3294, subd. (c)(1) (emphasis added)). The parties devote significant energy to whether Defendant's conduct was despicable and willful, but the definition of malice alternatively encompasses Defendant's intent to harm Plaintiff. A finding that a jury presented with the evidence of Defendant's malicious intent in the form of clear, repeated writings and testimony under oath has a substantial probability of awarding punitive damages to Plaintiff pursuant to Civil Code section 3294 is reasonable.

To contradict Plaintiff's Declaration that Plaintiff was present when Defendant testified under oath that Defendant intended his threats to instill fear in Plaintiff and in the congregation, Defendant offers quotes from Defendant's deposition in which Defendant states both that he did and did not intend to scare members of the church (Opp., 12:28-13:16). However, Plaintiff's Declaration that Defendant testified that he intended his threats to instill fear is nonetheless true, even if he testified otherwise as well.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiff shall prepare for the Court's signature a written order consistent with the Court's ruling, pursuant to California Rules of Court, Rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court.

Posted: 3:00 P.M.

